

# The Sailing Vessels (Members Of Crew) Rules, 1967

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Union of India - Act

The Sailing Vessels (Members Of Crew) Rules, 1967

UNION OF INDIA

India

The Sailing Vessels (Members Of Crew) Rules, 1967

Rule THE-SAILING-VESSLS-MEMBERS-OF-CREW-RULES-1967 of 1967

Published on 23 March 1967

Commenced on 23 March 1967

[This is the version of this document from 23 March 1967.]

[Note: The original publication document is not available and this content could not be verified.]

The Sailing Vessels (Members Of Crew) Rules, 1967

Published vide Notification Gazette of India, 1967, Part 2, Section 3(i), page 588

1908.

G.S.R. 533 dated 23th March, 1967. - In exercise of the powers conferred by Sec.435 and Sec.457 of the Merchant Shipping Act, 1958 (

44 of 1958

), and of all other powers hereunto enabling, the Central Government hereby makes the following rules, namely :

1.

Short title commencement and Application.

(1)

These rules may be called the Sailing Vessels (Members of Crew) Rules, 1967.

(2)

They shall come into force at once.

(3)

They shall apply in relation to sailing vessels registered in India and proceeding to ports outside India.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

"Act" means the Merchant Shipping Act, 1958 (

44 of 1958

):

(b)

"Form" means a Form set out in the First Schedule :

(c)

"identity card" means an identity card issued under these rules and includes an Identity card for Seamen (Sails) issued under the authority of the Central Government to a member of the crew of a vessel before the commencement of these rules and valid on the date of such commencement;

(d)

"Issuing Authority " means the authority specified as such in the Second Schedule;

(e)

"permit" means a permit issued under these rules and includes an Identity card for Seamen (Sails) issued to a tindal under the authority of the Central Government before the commencement of these rules and valid on the date of such commencement;

(f)

"Schedule" means a Schedule to these rules;

(g)

"vessel" means a sailing vessel to which Part XV of the Act applies.

3.

Possession of permits/identity cards.

(1)

No person shall serve or be allowed to serve on a vessel on any voyage outside India,

(a)

as a tindal, unless he is in possession of a permit;

(b)

as any other member of the crew, unless he is in possession of an identity card valid under these rules.

(2)

The holder of a permit or an identity card shall, on demand by any Issuing Authority or a Registrar of Sailing Vessels or any officer of Customs, produce such permit or identity card for inspection by such authority, Registrar or officer.

(3)

No officer of customs may clear outward any vessel, unless the tindal thereof is in possession of a permit and the other members of the crew thereof are in possession of identity cards, valid under these rules.

4.

Issue of permits/identity cards.

(1)

An application for a permit or an identity card shall be made in duplicate in Form A to the Issuing Authority and such application shall be accompanied by [a fee of Rs. 3]

[Substituted by G.S.R. 150, dated 25th January, 1984]

[and three copies of the passport size photograph of the applicant]

[Inserted by G.S.R. 1544, dated 26th June, 1968]

.

(2)

On receipt of an application under sub-rule (1) the Issuing Authority shall, after conducting such inquiry, if any, as he may consider necessary, either issue the permit or identity card or, for reasons to be recorded in writing refuse to issue the same.

(3)

Permits and identity cards shall be issued in Form B and shall be numbered serially, such number being preceded by the code letters of the port of issue specified in the Merchant Shipping (Registration of Sailing Vessels) Rules, 1960.

(4)

A permit or an identity card shall be valid for a period of [three years]

[Substituted by G.S.R. 150, dated 25th January, 1984]

from the date of issue :

Provided that the Issuing Authority may grant, for reasons to be recorded in writing a permit or an identity card for a period less than '[three years]'. Provided further that where at the expiry of a permit or an identity card, the holder thereof is on a vessel which is on a voyage outside India, such permit or identity card shall be deemed to be valid until such vessel arrives at any port in India.

(5)

Where a permit or an identity card is refused under these rules or where such permit or identity card is granted for a period less than [three years]

[Substituted by G.S.R. 150, dated 25th January, 1984]

the Issuing Authority shall inform the applicant in writing stating the reasons therefore and in the case of refusal shall return to the applicant the fee paid by him.

(6)

The Issuing Authority shall forward a duplicate copy of every application received by him under this rule to the Director-General for record and where an application for a permit or an identity card is refused he shall also send a report stating briefly therein the reasons for such refusal.

5.

Renewal of permits/identity cards.

(1)

The holder of a permit or an identity card may present it for renewal together with an application for that purpose and a renewal fee of [Rupees three]

[Substituted by G.S.R. 150, dated 25th January, 1984]

to the Issuing Authority within thirty days of the expiry of such permit or identity card.

(2)

The Issuing Authority shall renew the permit or identity card for a period of [Three years]

[Substituted by G.S.R. 150, dated 25th January, 1984]

by making a suitable endorsement thereon :

Provided that such Authority may, for reasons to be recorded in writing, renew the permit or identity card for a period less than '[three years]' or refuse to renew the same.

(3)

Where the Issuing Authority refuses to renew a permit or an identity card under this rule or where he renews such permit or identity card for a period less than [three years]

[Substituted by G.S.R. 150, dated 25th January, 1984]

he shall inform the holder of such permit or identity card in writing stating the reason therefor and in the case of refusal shall return to the holder the fee paid by him.

(4)

Where the Issuing Authority refuses to renew a permit or an identity card under this rule, he shall send a report to the Director-General stating briefly therein the reason for such refusal.

6.

Suspension or cancellation of permits/identity cards.

- If the Issuing Authority has reasons to believe that the holder of a permit or of an identity card has-

(a)

used or attempted to use false documents or made a false declaration for the purpose of obtaining the permit or, as the

case may be, the identity card;

(b)

committed or attempted to commit any offence punishable under Chapter IX or Chapter XVII of the Indian Penal Code (45 of 1860) or under the Prevention of Corruption Act, 1947 (

2 of 1947

) or under the Customs Act, 1962 (

52 of 1962

);

(c)

without sufficient cause deserted his place of duty on a vessel or has, without such cause, refused to discharge his duties on a vessel, then the Issuing Authority may, after giving the holder an opportunity to be heard, by order in writing and for reasons which shall be communicated in writing to the holder suspend for any period or cancel the permit or identity card.

7.

Appeals.

- Any person aggrieved by the decision of the Issuing Authority-

(a)

refusing him a permit or an identity card,

(b)

granting him a permit or an identity card for a period of less than one year.

(c)

refusing to renew his permit or identity card or renewing his permit or identity card for a period of less than one year,

(d)

suspending or cancelling his permit or identity card, may within thirty days of the receipt by him of the reasons for such duration appeal in writing to the Director-General.

8.

Issue of duplicate permits/identity cards.

(1)

Where a permit or an identity card is lost destroyed, defaced or mutilated, the holder thereof may apply, along with an affidavit setting out the facts, to the Issuing Authority for a duplicate copy thereof.

(2)

An application made under sub-rule (1) shall be accompanied by a fee of [Rs. 2.00]

[Substituted by G.S.R. 150, dated 25th January, 1984]

Provided that the Issuing Authority may, if satisfied that such permit or identity card is lost, destroyed defaced or mutilated for reasons beyond the control of the holder thereof, refund such fee.

(3)

On receipt of an application under sub-rule (1) the Issuing Authority, after satisfying itself as to the correctness of the statements made therein, may issue a duplicate permit or, as the case may be an identity card and such permit or identity card shall be marked "DUPLICATE" in red ink.

(4)

Where a permit or an identity card which has been stated to be lost or destroyed and in respect of which a duplicate has been issued under this rule, is subsequently found, it shall be delivered to the Issuing Authority for cancellation.

9.

Penalty.

- Whoever commits a breach of the provisions of the foregoing rules or forges or fraudulently alters a permit or an identity card issued in respect of himself or of any other person or fraudulently uses a permit or an identity card or a duplicate thereof which is forged or altered or does not belong to him shall be punishable with fine which may extend to five hundred rupees.

10.

Central Register.

(1)

On or before the 10th of every month, every Issuing Authority shall submit to the Director-General a return as in Form C. (2)

The Director-General shall maintain a Central Register in Form D and enter therein details of all permits and identity cards issued under these rules and any subsequent particulars reported from time to time.

First Schedule

[Rule 2(b)]

Forms

Form-A

[Rule 4(1)]

In Duplicate

Application For Permit/identity Card Under The Sailing Vessels (Members Of Crew) Rules, 1967

To

The Issuing Authority,

port of .....

I, the undersigned hereby apply for a permit/Identity Card as a certificate of Identity as a Tindal/Member of the Crew on a Sailing Vessel in accordance with the Sailing Vessels (Members of Crew) Rules, 1967,

1.

Full Name in BLOCK LETTERS and Present Address

2.

Age and Date of Birth

Age

: Date of Birth:

3.

Place of Birth. ..

4.

Permanent Address

District

:

State

:

5.

Father's Name and Address

Name

:

Address

:

6.

Nationality.

7.

Religion

8.

Height

9.

Complexion

10.

Colour of Hair/eyes

11.

Marks of Identification

12.

Full Name, relationship and address of next of kin.

Name

:

Relationship

Village

:

Thana

: Post Office : District :

State

:

13.

Particulars of any existing previous pass or passport or Identity cards (If none, say none).

Signature

of L.H.T. Impression of Applicant.

14.

Whether any previous application has been made for the issue of an Identity card:

We

hereby certify that we know the applicant and that the particulars furnished by him are true to the best of our knowledge and belief.

1.

Signature :

2.

Signature :

Name

in Block Letters

Name

in Block Letters

Address

.....

Address.....

(TO

BE FILLED IN BY THE OFFICER AUTHORISED TO ISSUE PERMITS/IDENTITY CARDS)

A

Permit/An Identity Card has already been issued to the applicant.

The

Particulars thereof are as stated below;

No.

with Port Code letters :.....

Date

of Issue: .....

Date

of Expiry:.....

No

Permit/Identity Card has been issued to the applicant for the following reasons:

£

Delete entry not applicable.

{|

|

l}

The above photo should be authenticated by impressing the official seal and signature of the Issuing Authority which should be partly on the photograph.

Period of refusal .....

Signature of Issuing Authority with date .....

Designation .....

Port .....

I have received the Permit/Identity Card as described above, with my photograph affixed and authenticated.

Signature or Left hand thumb impression of applicant and date .....

[Form B]

[rule 4(3)]

Government of India

Ministry Of Transport And Shipping

(National Emblem)

Permit

Identity Card

[Issued under the Sailing Vessels (Members of Crew) Rules, 1967]

Name :

Permit/Identity Card No:

(Note :-The serial number shall be preceded by code letters identifying)'

National Emblem

Space

For

Photograph

The above photo should be authenticated by impressing the official seal of the issuing authority partly on the photo and partly on the Book and by affixing signature of the issuing officer.

National Emblem

This is to certify that

Shri .....Son of Shri .....whose signature and/or left hand thumb impression and photograph are attached and whose particulars are entered herein is a Seaman (of a sailing vessel).

His Identity Card No.\* .....is valid only up to ..... unless renewed.

Issued under the authority of the Government of India.

Date:

Port :

Signature

Designation

and Stamp .....

\*(The card number shall be same as on inside cover preceding.)

Name of Seaman (Sails).....

Father's Name .....

Date of Birth (if known) .....

Place of Birth .....

Permanent Address .....

Village

Post Office

Thana

District

State

Nationality .....

Religion .....

Height

Colour of

1. Eyes 2. Hair

Complexion

Distinguishing marks

Full name, relationship and permanent address of next of kin.

Village

Post Office

Thana

District

State

Signature/Left hand thumb impression of seaman.

(No

card shall be renewed for a period exceeding one year.)

Renewed

up to Date and Year

At

port

Signature

and Official Stamp of the Renewing Officer who shall be an

Officer authorised as Issuing Authority

Employment Record

Name

of Vessel

Port

of Registration and Official No. of vessel

Registered

tonnage

Port

of joining

Date

of joining

Port

of discharge

Date

of discharge

Character

Tindal's

Name and Signature or left hand thumb impression

1

2

3

4

5

6

7

8

9

Additional Endorsement'S

Caution

The Book is a valuable document. It should not be allowed to pass into the possession of any unauthorised person. If lost or destroyed, the fact and circumstances should be immediately reported to the Issuing Authority.



This Book must not be altered or mutilated in any way, nor any endorsement made on it by any person other than a duly authorised official.

Form C

[rule 10(1)]

Monthly Return Relating To Identity Cards Issued Under The Sailing Vessels (Members Of Crew) Rules, 1967 At The Port Of .....For The Month Of .....19.

Permits/Identity Cards renewed during the month

Code No. of

Permit/Identity Card

Holder's Full Name

Date of renewal of

Permit/Identity Card

Permits/Identity Cards cancelled or suspended during the month

Code

No

Holder's

Name

Whether

Permit/Identity Card was cancelled or suspended

Reason

for cancellation/suspension

If

suspended, period of suspension

Suspended Permits/Identity Cards re-issued during the month

Code

No.

Name

of Holder

Date

when Permit/Identity Card was suspended

Date

of re-issue

Duplicate copies of Permits/Identity Cards issued during the month

Code

Number

Name

of Holder

Date

of Issue

Reasons

given by holder for request for re-issue

Whether

original copy of Permit/Identity Card has been withdrawn from

Holder

(Signature)

.....

(Designation)

.....

(Port)

.....

Form D

[rule 10(2)]

Register Of Permits/identity Cards Issued To Tindals And Other Members Of The Crew Of Sailing Vessels

Code Number of Permit/Identity Card .....

Date of Issue.....

Period of Validity.....

Issuing Authority .....

Name

of Person to whom permit/Identity Card has been issued

Father's

Name

Date

of Birth

Place

of Birth & Nationality

Religion

Permanent

Address

Full

Name, Relationship and Full Address of Next-of-Kin

Description

of Holder

1.

Height

Colour

of Eyes

Hair

Complexion

Distinguishing

Marks

Remarks[\*]

[If a Permit or Identity Card is cancelled/suspended, the date of such cancellation/suspension and reason and, in the case of suspension, the period of suspension should be entered here.]

Second Schedule

[rule 2 (d)]

Name of ports and their code letters for purpose of issue of Identity Cards

Name

of the Port

Code

Letters

Issuing

Authority

Gujarat

Bedi

(Jamnagar)

BDI

Regional

Officer (Sails)

Okha

OKA

Registrar

of Sailing Vessels

Porbunder

PBR

Registrar

of Sailing Vessels

Veraval

VRL

Registrar

of Sailing Vessels

[Mandvi

(Kutch[Jafrabad]

[Substitued & Inserted by G.S.R. 827(E), dated 15th September, 1989]

JFD

Registrar

of Sailing Vessels

Kerala

Kozhikode

KZK

[Regional

Officer (Sails)]

[Substitued by G.S.R. 770, dated 17th April, 1968]

Maharashtra

Bombay

BOM

Regional

Officer (Sails)

Tamil[Mangalore]

[Substitued & Inserted by G.S.R. 827 (E), dated 15th September, 1989]

MNG

Registrar

of Sailing Vessels

Nagapattinam

Karwar

KWR

Registrar

of Sailing Vessels

Marmugao

MGO

Registrar

of Sailing Vessels

Lakshadweep

UTL

Registrar

of Sailing Vessels

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